

Thanks to **decades of campaigning**, the belief grows that **legal abortion is a fundamental right** of women.



The **Ninth and Fourteenth Amendments** are judged to cover the right of a woman to **abort a pregnancy**.



The **US Supreme Court** rules that women have a **constitutional right to choose abortion**.



**Roe v. Wade legalizes abortion in the US.**



Despite some **opposition on moral grounds**, abortion remains legal in most countries as a **woman's right to choose**.

An initial court case ruled in McCorvey's favor, but when Texas appealed against that decision, the case moved to the Supreme Court in 1970. After more than 2 years of legal wrangling, a majority decision of seven to two finally ruled in McCorvey's favor in January 1973.

Enshrining personal rights and the right to privacy, the Ninth and Fourteenth Amendments of the US Constitution provided the legal basis for the ruling. The Supreme Court ruled that these encompassed a woman's right to make her own decision on whether or not to have an abortion. But at the same time, the Court made clear that this right was not "absolute" because it had to be balanced against the need to protect the mother's life (late-term

abortion carries serious risks) and that of the fetus. The Court sought to resolve this potential conflict by considering pregnancy in each of its three trimesters. It ruled that, unless there were compelling medical reasons, a decision on abortion in the first trimester (up to 12 weeks) should be the mother's alone; during this period, abortions generally pose less of a threat to a woman's health than childbirth. During the second trimester, there could be grounds for not allowing an abortion if it posed a threat to a woman's health. Although the

**Norma McCorvey's pregnancy** was at the heart of the *Roe v. Wade* case. After converting to Catholicism later in life, she opposed abortion and regretted her part in its legalization.

judgment largely side-stepped the contentious question of when a fetus becomes a viable human, it accepted that it was by the start of the third trimester, so the state should prohibit abortion then (unless the woman's life is at risk).

Even on strictly legal terms, the ruling has been questioned by many commentators. One of the two dissenting judges, Bryon White, said, "I find nothing in the language or history of the Constitution to support the Court's judgment," calling it "an improvident and extravagant exercise of the power of judicial review." Even Edward Lazarus, a clerk to the Supreme Court and firm supporter of women's right to choose abortion, said, "As a matter of Constitutional interpretation and judicial method, [the ruling] borders on the indefensible [and] provides essentially no reasoning in support of its holding."

### **Pro-choice**

The impact of the judgment was immediate. Any state law that conflicted with this ruling was automatically overturned, but

